

# Jhora Area Land Act, 1971

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Jhora Area Land Act, 2028

Royal Seal and Publication Date

2018.6.6

Amending Act

Republic Strengthening and Some Nepal Law Amendment Act, 2066 2066.1.7

Act No. 13 of 2018

An Act made to make provision relating to land in the Jhora area

Preamble: Whereas it is desirable to make timely provision for the land in the Jhora area of Morang, Sunsari and Jhapa districts where forests have been cleared, in order to maintain peace and order and for the economic interest of the general public,

This Act is hereby made by His Majesty King Mahendra Bir Bikram Shah Dev with the advice and consent of the National Panchayat. 1. Short title, extent and commencement: (1) This Act may be called the "Jhora Area Land Act, 2028".

(2) This Act shall apply to the Jhora areas of Morang, Sunsari and Jhapa districts.

(3) This Act shall come into force in the Jhora area designated by notification published by the Government of Nepal in the Nepal Gazette from the date so specified. Date and place of commencement of the Act:-

(1) In the Jhora areas of Morang, Sunsari and Jhapa districts, the Act is designated to commence from 2018.8.1 (Nepal Gazette - 2018.7.29).

(2) In the specified area of Sunsari district, the Act is designated to commence from 2034.1.5 (Nepal Gazette - 2034.1.5). 2. Definitions: Unless the subject or context otherwise requires, in this Act?

(a) "Jhora area" means an area which has been cleared of forest and settled and cultivated upon obtaining right from a legal source.

(b) "Landowner" means a person whose name is registered in respect of land according to the prevalent Nepal law, or who has the right to have it so registered.

(c) "Tenant cultivator" (Raiyat) means a person who has cultivated land in the Jhora area by his own or his family's labor and has been residing there earning his livelihood.

(d) "Prescribed" or "as prescribed" means prescribed in the rules made under this Act or as so prescribed. 3.

Cessation of landowner's right: (1) In respect of land in the Jhora area where this Act has come into force, which has not been personally cultivated by the landowner but has been cultivated by a tenant cultivator (Raiyat), all kinds of rights and interests of such landowner shall cease. (2) Except where expressly provided in this Act, even if any person has, in any manner, become entitled to receive any land in the Jhora area up to

the time of commencement of this Act, such person shall not, after the commencement of this Act, receive land in the Jhora area accordingly nor shall the land be registered in his name. (3) The Government of Nepal shall give compensation, as prescribed, not exceeding five times the amount of land revenue assessed on such land, to the landowner whose rights in the land cease under sub-section (1). Provided that no compensation shall be given for any land which has not been registered according to the prevalent Nepal law. (4) The landowner shall receive the amount of compensation payable under sub-section (3) from the prescribed office or institution as prescribed. 4. Sale and distribution of land: (1) The prescribed officer shall, at the prescribed price, sell and distribute as prescribed, the land in the Jhora area where this Act has come into force, to the tenant cultivator who has been cultivating the land while residing in that area for at least one year, at a rate not exceeding four \_bighas\_ in consideration of the size of his family. (2) Land remaining after sale and distribution under sub-section (1) shall be sold and distributed by the prescribed officer to the prescribed category of persons at the prescribed price and as prescribed. 5. Registration of land: (1) The prescribed officer shall register in the prescribed register the land sold and distributed under section 4 in the name of the person entitled to the sale and distribution, and shall send a certified copy thereof to the concerned Land Revenue Office (Mal Adda), or in a district where there is no Land Revenue Office, to the Land Administration Office. (2) Upon receipt of the certified copy of the register under sub-section (1), the concerned Land Revenue Office or Land Administration Office shall register the land in the name of the person entitled thereto in the capacity of a landowner. 6. Conditions to be observed by the person acquiring land: The person acquiring land under section 4 shall observe the following conditions: (a) The prescribed price of such land shall be paid in cash in a lump sum or in installments within the stipulated time at the prescribed office as prescribed.

Provided that nothing in this section shall be deemed to prevent any person from paying the whole amount payable or any installment amount payable before the stipulated time. (b) Until the full amount payable for such land is paid, the land acquired under section 4 shall not be sold, transferred, gifted, or otherwise alienated in any manner, nor shall it be mortgaged to any person other than the Agricultural Development Bank or an institution established by a law relating to providing loans to farmers or the prescribed administration. (c) Land revenue leviable according to the prevalent Nepal law on such land shall be paid from the year in which such land is registered. 7. Power to adopt Special Court procedure and exercise powers: In relation to disputes arising in the course of performing tasks under this Act, the prescribed officer shall adopt the procedure and exercise the powers of the Special Court Act, 2059. 8. Penalties: (1) If any person obtains land by showing false particulars or violates any provision of section 6, the prescribed officer may confiscate the land obtained by him and the amount paid for acquiring such land. (2) If any person obstructs or opposes the performance of tasks under this Act, the prescribed officer may impose on him a fine of up to one thousand rupees or imprisonment for up to one year, or both. 9. No complaint or appeal to lie: No suit, complaint or appeal shall lie in any court against any act or decision done by the prescribed officer under this Act or the rules made under this Act. Provided that if a complaint is made against such decision of the prescribed officer, the Government of Nepal may have it reviewed. 10. Power to make rules: The Government of Nepal may make rules for the purpose of implementing this Act. 11. Saving: Matters written in this Act and the rules made under this Act shall be according to those provisions, and in other matters, according to the prevalent Nepal law.